

ATTACHMENT B

REQUEST FOR APPROVAL OF PROCUREMENT CONTRACTS NOT UNDER DELEGATED AUTHORITY

A. APPROVAL OF PROFESSIONAL SERVICE CONTRACTS

NEW CONTRACTS/ AMENDMENTS/AUTHORIZATION TO INCREASE CONTRACT CAPACITY EXCEEDING \$250,000

Item C

DIVISION OF COMMUNICATION, ENGAGEMENT, AND COLLABORATION **\$2,000,000**

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Various Vendors	TBD	Community Challenge Grant Unrestricted General Funds (100%)	\$2,000,000

Authorization to negotiate and award a total of \$2,000,000 in individual Community Challenge grants to tax-exempt community organizations over a three-year period, to provide high-quality after-school enrichment activities/services. to District students.

As a strategy to increase engagement with the broader Los Angeles community, the District is providing tax-exempt organizations an opportunity to apply annually for a \$25,000 to \$50,000 grant to provide support services that meet the academic and social-emotional growth of students and their families. Services can include, but are not limited to, literacy and numeracy supports, tutoring, mentoring, classes in theater, dance, music, service learning opportunities, field trips to colleges and universities, and family workshops and educational events.

The Office of Development and Civic Engagement will be responsible for the management of outreach activities and convening central office teams to assess Community Challenge grant applications, which will be accepted yearly by a specified deadline. The Office will work with Procurement, Finance, Risk Management, and Division of Instruction to issue grant awards, create reports, and implement the program. The Office of Development and Civic Engagement will launch a solicitation for grant applications this fall and establish a committee of internal reviewers to review and recommend grantee recipients. Procurement will submit the selected grant recipients' contracts for Board ratification.

Grant applications will be evaluated on the following criteria:

- Qualification and experience serving communities of [focus schools for community challenge grant](#)
- Experience working directly with LAUSD (higher weight given to those with less experience)
- Proposal of Services
- Operations and Community Relations
- Innovation and Outcomes

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Organizations must have pre-existing and secular programming and be able to meet the District's liability insurance and fingerprinting requirements based on the type of services that will be provided. Grantees will be required to provide a mid-year report that demonstrates the impact of the services to receive further funding installments. Organizations must also provide an end-of-year report to assess the impact of programming and provide a mid-year report that demonstrates the impact of the services to receive further funding installments. Organizations must also provide an end-of-year report to assess the impact of programming.

It is expected that grants will be awarded to at least 20-30 new and existing organizations who will be engaged in supporting 600-1,200 students and their families. The program will provide the District with an opportunity to engage with tax-exempt community-based organizations with deep roots within the communities we serve, that do not currently have an active contract with the District, to expand the universe of organizations and people supporting District schools and students. Organizations will be expected to provide direct services outside of the instructional day at their site, located in the L.A. County region.

Below are the expected outcomes from the grant awards:

Academics	Social Emotional	Family Engagement	College & Career Readiness
Improve literacy	Grow in social-emotional competencies	Increase Parent Portal usage	Increase A-G completion rates
Improve numeracy skills	Promote active lifestyles	Amplify District resources and messaging	Increase support with financial aid
Increase STEAM educational opportunities	Promote healthy nutrition	Provide additional educational resources	Provide internship opportunities
Increase tutoring participation	Increase mentorship		Increase career exposure including CTE pathways

The Community Challenge Grants align with the following Local Control and Accountability Plan Goals and the LAUSD Strategic Plan:

- Academic Excellence
- Joy and Wellness
- Engagement and Collaboration
- English Learner Supports
- Black Student Achievement Plan

Grant Term: 11/15/23 through 06/30/24 with option to renew grant for two years depending on funding availability.

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Total Grant Value: \$2,000,000

Requester:

Shannon Haber, Chief of Communications, Engagement and Collaboration

Equity Impact:

Component	Score	Score Rationale
Recognition	4 Actively recognizes and specifies historical inequities to correct	Grant evaluation criteria prioritizes organizations that serve in high-need areas as well as TSP students. The program overall recognizes the importance of partnering with organizations that are trusted within the community and work closely with, and have a deep knowledge of, historically disadvantaged groups. Funded grant proposals will include those that prioritize academic excellence, health and wellness and family engagement—often where we see the greatest inequities in access and outcomes.
Resource Prioritization	4 Effectively prioritizes resources based on student need	Preference will be given to grantees that serve Priority School and SENI communities which have demonstrated a high need for student support. Organizations who have a demonstrated track record of trust and engagement with those communities will also be given preference.
Results	4 Extremely likely to result in closed opportunity gaps and/or closing achievement gaps	The Community Challenge Grant is expected to result in an additional network of support for students to receive the academic and social-emotional support to succeed in the classroom.
TOTAL	12	

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A. APPROVAL OF PROFESSIONAL SERVICE CONTRACTS

NEW CONTRACTS/ AMENDMENTS/AUTHORIZATION TO INCREASE CONTRACT CAPACITY EXCEEDING \$250,000

Item D

<u>OFFICE OF THE CHIEF MEDICAL DIRECTOR</u>			\$10,000,000
<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Various Vendors*	4400011330	General Funds	\$10,000,000**
	4400011331	(67%)	
	4400011332	Restricted	
	4400011333	General	
	4400011334	Funds	
	4400011335	(33%)	
	4400011336		
	4400011337		
	4400011338		
	(RFP 2000002841)		

*22nd Century Technologies, Inc.; Lancesoft, Inc.; Maxim Healthcare Staffing Services, Inc.; New Direction Solution LLC dba Procure Therapy; New Mediscan II, LLC dba Cross Country Education; RCM Technologies (USA), Inc. dba RCM Health Care Services; Ro Health, LLC; SHC Services, Inc. dba Supplemental Health Care; The Stepping Stones Group, LLC

Authorization to increase capacity of formally competed bench of nine (9) contracts with qualified temporary staffing agencies to provide nursing services for students. The initial authorization of \$800,000 has been expended. The authority to increase or decrease individual amounts for these contracts will be limited to the aggregate value of \$10,800,000.

While the District is steadily increasing its nursing workforce, there is still a shortage, with approximately 250 vacancies. To help offset this, and the increasing number of students with specialized health needs, it is expected that approximately 36-40 licensed vocational nurses will be placed throughout the District (approximately 10 per Region). Deployment of such resources is determined by the nursing administrator in each Region and would occur when and where sufficient District employees and substitutes are not available. Additional nursing services will support the health and safety of all students, keeping students healthy so they can remain in school and ready to learn, thereby improving attendance rates. As more District nurses are hired, the District will continue to reevaluate the need for staffing agency nurses.

A total of 27 proposals were submitted, of which, 25 were deemed qualified. The nine selected firms had the highest scoring proposals and their services coincided within the available budget. The source selection committee consisted of nine panelists including one Interim Special Education Specialist; two School Nurses; one School Support Administrator; two Nursing

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Administrators; one Special Education Resource Nurse; one Administrative Coordinator; and one Senior Physician, all from the Office of the Chief Medical Director. The firms were evaluated on firm experience and qualifications, personnel qualifications, ability to attract and retain qualified candidates, billing rates, Small Business Enterprise (SBE) utilization, and Work Based Learning Partnership (WBLP) plan.

The services align with Strategic Plan Pillar 2, Joy and Wellness, with priorities of Whole-Child/Well-Being and Outstanding Attendance. Whole-Child/Well-Being supports students through integrated health, nutrition, and wellness services. This is important because attending to the well-being of the whole child lays a solid foundation for learning and development. Ensuring outstanding attendance supports consistent in-class learning, which is important because being engaged and on campus is essential for students to learn.

Contract Term: 05/08/23 through 05/09/28

Initial Authorized Value: \$800,000
 **Additional Authorized Value: \$10,000,000
Aggregate Value For Nine (9) Contracts: \$10,800,000

Requester:
 Dr. Smita Malhotra, Chief Medical Director
 Office of the Chief Medical Director

Equity Impact:

Component	Score	Score Rationale
Recognition	3 Affirmatively recognizes historical inequities	Affirmatively recognizes historical inequities by providing health care services to all students equally.
Resource Prioritization	3 Prioritizes resources based on student need	Prioritizes resources based on student need by providing health care services to students as it relates to their unique and specific health needs.
Results	3 Likely to result in closed opportunity gaps and/or closing achievement gaps	Likely to result in closed opportunity gaps and/or closing achievement gaps by providing health care services to all students thereby resulting in the minimizing gaps in access.
TOTAL	9	

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Item E

OFFICE OF THE GENERAL COUNSEL**\$250,000,000**

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Acker & Whipple, APC;	4400012180	General	\$250,000,000
Artiano Shinoff Abed Carelli	4400012182	Funds	(Previously
Sleeth & Wade APC;	4400012183	(75%)	approved BOE Rep
Cummings, McClorey, Davis,	4400012184		Nos. 233-20/21,
Acho & Associates, P.C.;	4400012185	Bond	319-20/21, and
Collinson, Daehnke, Inlow &	4400012186	Funds	216-21/22)
Greco (SBE);	4400012187	(25%)	
Dannis Woliver Kelley;	4400012188		
Fagen Friedman & Fulfrost;	4400012189		
Floyd Skeren Manukian,	4400012190		
Langevin, LLP;	4400012191		
Greenspoon Marder LLP;	4400012192		
Kahana & Feld, LLP;	4400012193		
McCune & Harber, LLP (SBE);	4400012194		
Peacock Piper Tong + Voss LLP;	(RFP 2000003074)		
Silver & Wright LLP;			
Tobin Lucks, LLP;			
Tyson & Mendes, LLP;			

*Albright, Yee & Schmit, APC (SBE); Allen Matkins Leck Gamble Mallory & Natsis LLP; Anderson, McPharlin & Connors LLP; Andrade Gonzalez LLP (SBE); Armstrong & Sigel, LLP (SBE); Artiano Shinoff Abed Blumenfeld Carelli Sleeth & Wade APC; Bacio & Associates; Ballard Rosenberg Golper & Savitt LLP; Bergman Dacey Goldsmith PLC (SBE); Best Best & Krieger LLP; Black and Rose LLP (SBE); Browne George Ross LLP; Carlson & Messer LLP; Clark Hill PLC; Clyde & Co US LLP; Coleman Chavez Associates LLP; Dannis Woliver Kelley; Eng & Nishimura (SBE); Fagen Friedman & Fulfrost; Finney Arnold LLP; Floyd Skeren Manukian Langevin, LLP; Garcia Hernandez Sawhney LLP; Grant, Genovese & Baratta, LLP; Greenberg Traurig LLP; Groveman Hiete LLP; Gutierrez, Preciado & House, LLP (SBE); Hanger, Steinberg, Shapiro & Ash, ALC; Hanna Brophy MacLean McAleer & Jensen LLP; Harris & Associates (SBE); Harrison, Eichenberg & Murphy LLP; Hawkins Delafield Wood LLP; Hayford Felchin Valencia & McWhorter LLP; Hurrell Cantrall LLP; Jackson Lewis PC; Jones Day; Kegel, Tobin & Truce, APC; Kessel & Megrabyan (SBE); Koeller Nebeker Carlson Haluck LLP; Laughlin, Falbo, Levy & Moresi LLP; Law Offices of Weitzman & Estes (SBE); Lewis Brisbois Bisgaard & Smith LLP; Liebert Cassidy Whitmore; Liebman, Quigley & Sheppard; Littler Mendelson PC; Lozano Smith; Meyers Nave Riback Silver & Wilson; Michael

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Sullivan & Associates LLP; Olivarez Madruga Lemieux O'Neill LLP; Orbach Huff Suarez & Henderson LLP; Orrick Herrington & Sutcliffe LLP; Peacock Piper Tong & Voss LLP; Peterson Bradford Burkwitz **(SBE)**; Pillsbury Winthrop Shaw Pittman LLP; Russell Legal Group **(SBE)**; Sanders Roberts; Strumwasser & Woocher LLP **(SBE)**; Theodora Oringher PC; Tobin Lucks LLP; and Vanderford & Ruiz LLP **(SBE)**

Approval to execute fourteen (14) formally competed retainer agreements to be added to the existing* bench of fifty-nine (59) agreements via “refresh” to provide outside counsel legal services to support the Office of the General Counsel (OGC). The aggregate value of these retainer agreements remains the same at \$250,000,000 as previously approved by the Board ([Board Report Nos. 233-20/21, 319-20/21, and 216-21/22](#)). The authority to increase or decrease the amounts of these agreements will be limited to the aggregate value of \$250,000,000.

These services are necessary to supplement the legal services bench to provide additional capacity to defend the District in personal injury lawsuits filed by third parties alleging they suffered injuries arising out of sexual abuse molestation, vehicular accidents, fighting/bullying incidents at schools, premises liability, wrongful death, brain traumas, etc.

The addition of 14 formally competed retainer agreements, will allow for robust representation of the District in lawsuits against insurance carriers for failing to defend and/or indemnify the District in those types of personal injury cases. Currently, since California Assembly Bill (AB) 218 was passed, the District has had to confront a substantial increase in the filing of these lawsuits and there is an urgent demand for more law firms with these specific areas of expertise to support the OGC’s efforts. The capacity of the existing Outside Legal Services Bench in this specific area of specialization has exceeded its limits. An expansion of the existing legal services bench contracts with the addition of fourteen (14) law firms, will increase the OGC’s opportunity and access to these services, bolster the District’s efforts in the continuation of needed legal services to support the ongoing and anticipated litigation workload and accomplish the goal of empowering the OGC to defend the District effectively and successfully against these lawsuits.

The initial Request for Proposal (RFP) was conducted in 2020, fifty-nine (59) proposals were received, and all were deemed qualified. An RFP “refresh” was conducted in 2023, fourteen (14) proposals were received, and all were deemed exceptionally qualified. The Source Selection Committee was comprised of members of the Office of the General Counsel (OGC). Proposals were evaluated based on the following factors: Price/Cost Proposal, Qualifications and Experience of the Firm and Personnel, Diversity, Equity, and Inclusion (DEI) Plan, Small Business Enterprise (SBE) Utilization Program and Work-Based Learning Partnership (WBLP). Contracts were awarded to the responsible Law Firms whose proposals met the requirements stated in the RFP.

This action supports all the strategies listed in Pillars 2 and 3. The related strategic plan pillars and priorities and how it ties to this procurement are as follows: *Strategic Plan Pillar #2 – Joy and Wellness*, the focal point is to ensure safe, welcoming environments for students to better foster positive outcomes with emphasis on building strong social-emotional skills, resulting in whole-child well-being, and fostering strong school attendance and reduction in absenteeism/truancy. This pillar ties into the District’s core value of equity, improving overall safety at schools and increasing the number of students who feel safe at school free from abuse, bullying, sexual assault,

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molestation, etc. *Strategic Plan Pillar #3* - Engagement and Collaboration, the central point here, is to build stronger relationships between the District and the wider community, improve the lines of communication, and establish a path to collaborative approach to resolving issues which will result in overall student success. This pillar ties into all three of the District's core values of equity, collaboration, and excellence.

Contract Term: 11/15/23 through 12/31/25

Initial Authorized Value: \$12,500,000

1st Authorized Value Increase: \$50,000,000

2nd Authorized Value Increase: \$187,500,000

Aggregate Value For Seventy-Three (73) Contracts: \$250,000,000

Requester:

Devora Navera Reed, General Counsel
Office of the General Counsel

Equity Impact:

Not applicable.

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A. APPROVAL OF PROFESSIONAL SERVICES CONTRACTS

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Item F

INTERSCHOLASTIC ATHLETIC DEPARTMENT

\$0

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Home Town Ticketing, Inc.;	4400011708	Not applicable	\$0
Huddle Tickets, LLC, dba GoFan	4400011709		
	(RFP 2000002746)		

Approval of formally competed bench of two contracts to provide digital ticketing services in support of the Los Angeles Unified School District's Athletic and Associated Student Body programs. Contractors will be providing the following services District-wide: maintenance of full-service online digital ticketing platform; customer service support to school representatives/users on weekdays, evenings, and weekends; maintenance and reporting of payments/ transactions; and payments to schools/clients of funds generated via customer purchases. Any school hosting events may opt to use the digital ticketing platforms for purchases of entry tickets. This will minimize the handling of large amounts of cash, promoting school personnel safety and financial transparency.

The digital ticketing services aim to transition from cash and paper tickets to digital ticketing platforms with the ability to sell tickets online for student athletic events, graduations, proms, as well as other events requiring tickets for entry. Also, the use of digital ticketing services will meet the California Interscholastic Federation (CIF) Playoff requirements. Services will be of no cost to the District and participating schools will receive all the ticket face value minus fees and taxes deposited into their Associated Student Body accounts. Vendors will collect a minimal percent fee per ticket from the purchaser.

Four proposals were received and two were found qualified. The source selection committee consisted of subject matter experts from the Interscholastic Athletics Department, Division of Operations and Budget Services and Financial. Proposals were evaluated based on the following criteria: qualifications and experience of firm; project approach; fees for services; Small Business Enterprise (SBE) participation; and Work-Based Learning Partnership (WBLP) plan. Vendors in the competitive range were considered for award.

Home Town Ticketing, Inc. has been in business since 2016 and has provided ticketing services to clients such as Hillsborough County Public Schools, CIF Oakland Athletic League Commissioner, Minneapolis Public Schools, and Nevada Interscholastic Activities Association.

Huddle Tickets, LLC has been in business since 2001 and has provided ticketing services to large school district partners such as San Diego Unified School District (USD), Fresno USD, Miami-Dade County Public Schools, Atlanta Public Schools, and Houston Independent SD.

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The bench of contracts supports the District's Strategic Plan Pillar 2: Joy and Wellness by promoting health and wellness services through expanded opportunities for athletics, physical education and community events.

Contract Term: 12/01/23 through 11/30/28, includes two (2) one-year renewal options

Contract Value: \$0 (No cost to the District)

Requester:

Trenton Cornelius, Coordinator
 Interscholastic Athletic Department

Equity Impact:

Component	Score	Score Rationale
Recognition	4 Actively recognizes and specifies historical inequities to correct	Standardizes the process of event ticket purchase(s) of Districtwide events.
Resource Prioritization	4 Effectively prioritizes resources based on student need	Requires less personnel to manage, large cash handling, and events supervision.
Results	4 Extremely likely to result in closed opportunity gaps and/or closing achievement gaps	Product will help generate revenue at all our schools.
TOTAL	12	

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REQUEST FOR APPROVAL OF PROCUREMENT CONTRACTS NOT UNDER DELEGATED AUTHORITY**B. APPROVAL OF GOODS AND GENERAL SERVICES CONTRACTS**

Authority to award contracts for furnishing equipment, supplies and general services. The total amount is only an estimate since the expenditures made against contracts are based upon purchases and/or approved invoices.

NEW CONTRACTS/ AMENDMENTS/AUTHORIZATION TO INCREASE CONTRACT CAPACITY EXCEEDING \$250,000**Item G**

<u>INFORMATION TECHNOLOGY SERVICES</u>			\$15,000,000
<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
H. Co. Computer Products, Inc., dba ThinkCP Technologies; Graybar Electric Co., Inc.;	4400012029 4400012040 4400012041	Various per requesting school or office	\$15,000,000
Malor & Co., Inc.	(IFB 2000003124)	(100%)	

Approval of formally competed capacity contracts through an Invitation for Bid (IFB) process to be used by District IT Services to purchase components/parts for repairs or installation of information technology hardware and equipment for schools and offices districtwide. The authority to increase or decrease individual amounts of these contracts will be limited to the aggregate amount of \$15,000,000.

The requested products will be procured by District IT Services at a discounted price through contracts. Furthermore, procurement of products through an IFB ensures the awarded components/parts will be compatible with LAUSD's hardware and equipment.

Three qualified bids were received and reviewed by three staff from Information Technology Services (ITS). The three winning bidders are the lowest, responsive and responsible bidders. Two out of the three awarded vendors (H. Co. and Graybar) have provided reliable, low-cost products to the District through purchase orders for over 10 years: H. Co. has been doing business with the District since 2013 and Graybar has been doing business with the District since 2013. Malor is a new vendor to the District with 11 years of experience in the business. Malor's major customers are located in New York: JB Corporation, Nassau County, and Enterprise Rental Car.

These contracts support the District's Strategic Plan Pillar 4: Operational Effectiveness Priority 4B: Modernizing Infrastructure. The District IT Services' ability to purchase components/parts for repairs or installation of Information Technology hardware and equipment is necessary for the improvement and maintenance of state-of-the-art facilities and for providing access to modern technology.

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Contract Term: 12/01/23 through 11/30/26

Aggregate Value For Three (3) Contracts: \$15,000,000

Requester:

Soheil Katal, Chief Information Officer
Information Technology Services

Equity Impact:

Not applicable.

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C. APPROVAL OF DONATION

Item H

OFFICE OF ENVIRONMENTAL HEALTH & SAFETY

\$0

Approval of donation of marine fossil bone bed to the California State University Channel Islands and Cabrillo Marine Aquarium.

During construction at the San Pedro High School Comprehensive Modernization Project, a shallow marine fossil bone bed from the Miocene Epoch (13 million years ago) was discovered. The Natural History Museum of Los Angeles is currently selecting important fossil materials for curation as required by paleontological compliance obligations. The remaining fossil rocks are of no value and to be donated to California State University Channel Islands and Cabrillo Marine Aquarium.

Term: One-time donation

Value: \$0

Requester:

Carlos Torres, Director
Office of Environmental Health & Safety

Equity Impact:

Not applicable.